



Advocates for the beneficiaries of Oregon's school land trust

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July 10, 2026

Oregon Board of Forestry
Attn: Chair and Members of the Board
2600 State Street
Salem, OR 97310
boardofforestry@odf.oregon.gov

Re: Final approval of the Western Oregon State Forest Management Plan — the school trust lands must be excluded, or the trust made whole

Dear Chair and Members of the Board:

I write as president of Oregon Advocates for School Trust Lands, a nonprofit whose single purpose is to see that Oregon keeps the promise it made at statehood: that certain lands, and their proceeds, belong to the schoolchildren of this state. The Forest Trust Land Advisory Committee's July 16 agenda takes up the process for final approval of the Western Oregon State Forest Management Plan — the instrument that will implement the Western Oregon State Forests Habitat Conservation Plan across roughly 640,000 acres for a seventy-year permit term. Before the Board takes that step, it must confront a distinction the planning documents have blurred from the beginning: not all of the land in the permit area is the Board's to dedicate.

Most of the permit area is Board of Forestry land — the Tillamook, the Clatsop, and their companions — acquired largely from the counties and managed under ORS 530.050 to secure the “greatest permanent value of those lands to the state.” Within that mandate the Board enjoys broad discretion to weigh timber, habitat, water, and recreation as it judges best, and Oregon's courts have confirmed that discretion. *County of Linn v. State*, 319 Or App 288 (2022). On how the Board balances those values on its own lands, this letter takes no position.

But by the Department of State Lands' own published figures, approximately 28,000 acres inside the permit area are not the Board's lands. They are Common School Forest Lands — school trust lands owned by the State Land Board on behalf

of the Common School Fund and managed by the Department of Forestry only as the Land Board's contractor. The Department of State Lands states plainly that the plan "will cover all of ODF's and DSL's forestlands west of the Cascade Range, excluding the Elliott State Forest." Those acres answer to a different body of law.

Congress granted those sections "for the use of schools" in the Oregon Admission Act, a compact whose terms are "obligatory on the United States and upon the said State of Oregon." Act of Feb. 14, 1859, ch. 33, § 4, 11 Stat. 383. Congress had already fixed the character of the grant: the lands "and their proceeds, shall be forever inviolably set apart for the benefit of common schools." Act of Jan. 7, 1853, ch. 6, § 2, 10 Stat. 150. The Oregon Supreme Court has said what follows: "Under the Admission Act, the state is the trustee of the lands granted to it by the federal government." *Cascadia Wildlands v. Dept. of State Lands*, 365 Or 750, 758 (2019). The trustee's obligation is not aspirational. It requires the state "to use lands dedicated to the common school fund in such a way as to derive the greatest net profit for the people of this state," *Johnson v. Dept. of Revenue*, 292 Or 373, 382 (1982), and the "greatest benefit" mandate "may require the State Land Board to maximize net profit, for example, by obtaining the best price for the authorized sale of timber on common school lands." *Cascadia Wildlands*, 365 Or at 766. Courts across the West have reached the same conclusion about these grants for over a century: they create enforceable trusts — "real, not illusory," as Washington's Supreme Court put it — holding the state to the same fiduciary duties as a private trustee, including the duty not to divert trust assets to other state goals, however worthy those goals may be. *County of Skamania v. State*, 102 Wash 2d 127, 685 P2d 576 (1984).

That is the line the Habitat Conservation Plan crosses. The plan dedicates roughly half of the permit area to habitat conservation areas and riparian reserves for seventy years. Where that dedication falls on Board of Forestry land, it is a policy choice within your discretion. Where it falls on Common School Forest Lands, it is a commitment of trust assets to general public purposes — species conservation for the benefit of all Oregonians — with no compensation to the beneficiaries whose property is doing the work. A trustee bound by undivided loyalty cannot make that gift, and neither the management agreement with the Department of State Lands nor the Land Board's acquiescence cures it. A trustee cannot delegate away loyalty, and an agent cannot exercise a discretion its principal does not possess.

Oregon has run this experiment before. The Elliott State Forest received its own habitat conservation plan in 1995; conservation restrictions tightened; harvests collapsed; and by fiscal year 2013 the schools were paying money to own a forest — the first recorded net loss in the long history of these trusts. The state's answer was to attempt a capped-price sale, and finally to remove the forest from the trust altogether. The beneficiaries absorbed every loss. The plan now before you extends that same model to every remaining acre of school trust forestland west of the Cascades.

Accordingly, on behalf of Oregon Advocates for School Trust Lands and the beneficiaries of the school land trust, I must be direct: we demand that the Board withhold final approval of the Western Oregon State Forest Management Plan, and decline to apply the Habitat Conservation Plan or its incidental take permits to school trust lands, unless one of two conditions is met. Either the Common School Forest Lands are excluded from the plan's conservation dedications and managed under a trust-first prescription, or the Common School Fund is compensated at full fair market value for every acre of school trust land committed to a habitat or riparian set-aside — with the compensation paid by the public that elects the benefit, precisely as it would be if Oregon took a private woodland for a public purpose.

Candor requires me to note that Oregon Advocates for School Trust Lands, its national affiliate, and three Oregon school districts are presently before the Coos County Circuit Court on these fiduciary questions (Case No. 24CV38372), with trial set for August 18. This letter is a good-faith demand that the Board conform its final action to the trust obligation now, rather than compound the very breach the courts are being asked to remedy.

The Board of Forestry has broad discretion over the forests Oregon owns outright. It has none over the lands the state holds in trust for schoolchildren. We ask the Board to honor that line.

Respectfully,

Dave Sullivan
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cc: Kacey KC, State Forester and Secretary to the Board (kacey.kc@odf.oregon.gov)
Forest Trust Land Advisory Committee (ftlac.comment@odf.oregon.gov)
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